

our books; and therefore in the case betwixt Bowser and Collins in 22 E. 4. 33. b. there Pigot says, if the Court has not power and authority, then their proceeding is *coram non judice*: as if the Court of Common Pleas holds plea in an appeal of death, robbery, or any other appeal, and the defendant is attainted, it is *coram non judice quod omnes concesserunt*. But if the Court of Common Pleas in a plea of debt awards a (b) *capias* against a duke, earl, &c. which by the law doth not lie against them, and that appears in the writ itself; and if the sheriff arrests them by force of the *capias*, although the writ be against law, notwithstanding, inasmuch as the Court has jurisdiction of the cause, the sheriff is excused: and therewith agrees 38 H. 8. Dy. 60. b. The same law, if a justice of peace makes a warrant to arrest one for (a) felony who is not indicted although the (b) justice errs in making the warrant, yet he who makes the arrest by force of that warrant, shall not be punished by writ of false imprisonment, because he is Judge of the cause (H); and therewith (c) agrees

*Johnson*, 1 Brod. and Bing. 12. S. C. 3 B. Moore. 237. *Bowring v. Pritchard*, 14 East, 289. *Bradshaw v. Davis*, 1 Chitty's Rep. 374. But the sheriff is liable in an action for an escape, where after having arrested a defendant within a liberty, where particular officers had the exclusive privilege of executing all process, upon a *ca. sa.* in which there was not any *non omittas* clause, he suffers him to go at large before his removal from the liberty, for the arrest is not wrongful against such defendant, though it is wrongful against the bailiff of the liberty. *Pigott v. Wikes*, 3 Barn. and Ald. 502. and *vid. Hunter v. Jackson*, 6 T. R. 73.

Whatever protection an officer of a Court of competent jurisdiction, acting in obedience to the process of the Court, may be entitled to, it is quite clear, that if without any authority from the Court he maliciously issues an instrument purporting to be an order of the Court, by which a party is injured, the party injured may maintain an action against him. *Whitelegg v. Richards*, 2 Barn. and Cress. 45. S. C. 3 Dow. & Ryl. 237.

The protection afforded to the party in the suit is not commensurate with that afforded to the officers of the Court. Thus if an action be brought in an Inferior Court, where the cause of action did not arise within its jurisdiction, the plaintiff in the cause is considered as a trespasser in taking the defendant's goods in execution, but not the officers, per Lord Kenyon, 6 T. R. 245. *vid. Goodwin v. Gibbons*, 4. Burr. 2108. *Olliet v. Bessey*, T. Jones, 214. Vin. Ab. Courts, L. a. 6. *Truscot v. Carpenter*, 1 L. Raym. 230. *contrà*. In *Olliet v. Bessey*, the Court said, "the plaintiff shall be intended to know where the cause of action arose, but that it is impossible for the Court and officers to know that;" and this is the difference between this case and the *Marshalsea case*, for the Court and officers in the latter may well know whether the parties to the suit are of the household or not. So also it seems if a judgment or execution has been set aside for irregularity, the sheriff or officer may justify under it, but the party cannot, for it is not like an erroneous judgment which is the act of the Court, but it is a matter in the privity of himself or his attorney. Note c. *King v. Harrison*, 15 East, 615. Tidd's Practice, 1072. 8th Edn. But in setting aside judgment and execution for irregularity, the Court will restrain the defendant from bringing an action of trespass, unless a strong case of damage be shewn. *Lorimer v. Lule*, 1 Chitty's Rep. 134. *Vid.* note (g), *Bonham's case*, 8 Co. 121. a.

(b) 6 Co. 52. b. 54. a. 9 Co. 68. a. 2 Roll. Rep. 434. 493. Moor 767.

(a) Dy. 69. pl. 29.

(b) Cro. Car. 395. 602.

(c) Br. Faux Imprisonment 8. Br. Peace 6.

(H) If a man be accused to a justice of peace for an offence for which he causes him to be arrested by his warrant, although the accusation be false, yet he is excusable; but if the party be never accused, but the justice of his malice and own head cause him to be arrested, it is otherwise. *Windham v. Clere*, Cro. Eliz. 130. *Morgan v. Hughes*, 2 T. R. 225. Also, when an individual charges a constable to take a party into custody for a felony alledged to have been committed by him, no action will lie against the constable for the arrest, whether a felony has been committed or not, because in such a case it is his duty to act, and not to deliberate. But if an action be brought against both, the constable ought to plead separately, for if he should join